

PROFESSIONAL SERVICES AGREEMENT

This Agreement is entered into as of Feb 9, 2024 (the "Effective Date") by and between Keystone Works, with its principal place of business in Minneapolis, MN ("Client"), and Quartz Industries, with its principal place of business in Portland, OR ("Provider"). The parties agree as follows:

Compensation. In consideration of the Services, Keystone Works shall pay Quartz Industries fees not to exceed \$174,000 per invoice period. All invoices are payable within 30 days of receipt. Amounts unpaid after the due date accrue interest at the lesser of 1.5% per month or the maximum rate permitted by law.

Limitation of Liability. Except for breaches of confidentiality, neither party shall be liable for any indirect, incidental, special, or consequential damages arising out of this Agreement. Each party's aggregate liability shall not exceed the total fees paid or payable by Keystone Works in the twelve months preceding the claim.

Termination. Either party may terminate this Agreement upon 30 days' written notice to the other party. Either party may terminate immediately upon a material breach by the other party that remains uncured 30 days after written notice of the breach.

Intellectual Property. All work product created by Quartz Industries specifically for Keystone Works under this Agreement shall be the sole property of Keystone Works upon full payment of the applicable fees. Quartz Industries retains ownership of its pre-existing materials, tools, and methodologies.

Entire Agreement. This Agreement, together with its exhibits, constitutes the entire agreement between Keystone Works and Quartz Industries with respect to its subject matter and supersedes all prior or contemporaneous understandings. Any amendment must be in writing and signed by both parties.

Independent Contractor. Quartz Industries is an independent contractor and nothing in this Agreement creates a partnership, joint venture, agency, or employment relationship between the parties. Quartz Industries is solely responsible for its own taxes, insurance, and employee obligations.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

Fatima Brown, Keystone Works

Fatima Brown, Quartz Industries